

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice Md. Moinul Islam Chowdhury

CIVIL REVISION NO. 1307 OF 2012

Md. Shahid Mia and others

..... Plaintiffs-Respondents-Petitioners

-Versus-

Md. Hachhen Ali

..... Defendant-Appellant Opposite Party

Mr. Zafar Sadeque, Advocate

..... For the Petitioners

Mst. Sultana Nasrin with

Mr. Galif Ahmed, Advocates

..... For the Opposite Party

Heard on: 04.06.2017.

Judgment on: 08.06.2017.

At the instance of the present plaintiffs-respondents petitioners, Md. Shahid Mia and others this, Rule has been issued calling upon the opposite party to show cause as to why the judgment and decree dated 28.02.2012 and 06.03.2012 respectively passed by the learned Joint District Judge, 2nd Court, Netrakona in Title Appeal No. 104 of 2004, reversing the judgment and decree dated 07.06.2004 and 14.06.2004 respectively passed by learned Senior Assistant Judge, Sadar Court, Netrakona, in Other Class Suit No. 96 of 2001 should not be set aside.

The relevant facts for disposal of this Rule, inter-alia, are that the suit land measuring .31 acres appertaining to M.R.O.R. Khatian No. 415,

Dag No. 4704, Mouza-Bilgugabogi, District and Police Station: Netrakona belonged to the present defendant opposite party Md. Hachhen Ali. On 21.12.1992 the said Md. Hachhen Ali transferred the suit land in favour of the father of the present plaintiff petitioner by way of sale for the amount of Taka 21,000/- and handed over possession thereof. Prior to the said transfer the said Md. Hachhen Ali took consent from his sister and committed to execute a register sale deed in favour of the father of the present petitioner. Because of the close relationship between the parties, no Baina Nama was executed. The father of the plaintiff's petitioner, Ahamed Ali requested on several occasions to execute a register sale deed. The father of the petitioner died sometime in the year of 2000 (First Ramadan of 1407 B.S.). Thereafter the present plaintiff petitioner as the successor requested to register a sale deed but on 15th Baishakh, 1408 B. S, the defendant refused to do so therefore this suit has been filed for specific performance of contract.

The suit has been contested by the defendant No. 1, Md. Hachhen Ali by filing a written statement and denying the statement made in the plaint and also contending that he never sold the suit land in favour of the father of the plaintiff petitioner as the land was under Adhirar (Borga) under the present defendant opposite party therefore the suit land was under possession of the said Ahamed Ali for cultivating crops. Even after the death of the father of the petitioner the present petitioner

remained in the possession as a Borgadar under the present defendant opposite party. However, in course of time the present plaintiff petitioner refrained from giving sufficient corps to the defendant as they use to give, therefore, when the defendant opposite party was looking for new person for Borga replacing the petitioner this suit has been filed without any reason.

After hearing the parties the learned Senior Assistant Judge, Sadar, Netrakona decreed the suit by his judgment and decree dated 07.06.2004. Being aggrieved the present opposite parties, as the appellant preferred the Title Appeal No. 104 of 2004 in the court of learned District Judge, Netrakona which was heard by the learned Joint District Judge, 2nd Court, Netrokana on transfer who by his judgment and decree dated 28.02.2012 allowed the appeal. This revisional application has been filed challenging the legality of the impugned judgment and decree under Section 115(1) of the Code of Civil Procedure and the Rule was issued thereupon.

Mr. Zafar Sadeque, the learned Advocate, appearing for the petitioner submits that it appears from the judgment of the appellate court who totally without considering the evidences of the P.Ws. opined that in respect of transaction of money the other P.Ws. did not corroborate the P.W.1 and thus allowed the appeal, as such the judgment of the appellate court suffers from non-consideration of evidence of

P.Ws. and thus committed an error in the decision occasioning failure of justice.

The learned Advocate also submits that all the P.Ws. corroborated each other about the transaction of money by the father of the plaintiffs in favour of the defendant and handing over possession by the defendant and the learned trial court upon proper assessment of the evidence on record rightly decreed the suit but the appellate court without properly controverting the findings of the trial court reversed the same and thus committed an error.

The Rule has been opposed by the opposite party No. 1. Mst. Sultana Nasrin, the learned Advocate appearing with the learned Advocate Mr. Galif Ahmed, submits that there was no contract for sale of the suit land by the defendant as the owner to the father of the present petitioner at any time therefore question of specific performance of contract does not arise at all and the claim of an oral agreement and handing over possession are the matters of facts of the plaintiff petitioner's case but the petitioner utterly failed to prove their case through depositions of the PWs as such the Rule should be discharged.

The learned Advocate further submits that regarding the payment of Taka 21,000/- the PWs made an absolute inconsistent statement but the learned trial court on misreading and consideration of the deposition of P.Ws. and D.Ws. came to a wrongful conclusion to decree the suit

without any legal basis, however, the learned appellate court below lawfully found that the plaintiff petitioner failed to prove its own case because the original deed dated 28.09.1971 of the suit land is still under the custody of the present opposite party, which proves that the claim of sale has no basis but the present petitioner by misleading this court obtained the present Rule, which is liable to be discharged.

Considering the above submissions made by the learned Advocate appearing for the respective parties and also considering the revisional application filed under Section 115 (1) of the Code of Civil Procedure along with the annexures therein, in particular, the impugned judgment and decree and also perusing the materials in the lower court records, it appears to me, that the present petitioner as the plaintiff filed other class suit claiming Specific Performance of Contract on the basis of an oral agreement for selling the land measuring .13 acres which belongs to the present opposite party No. 1, Md. Hachhen Ali. In support of claim of the plaintiff petitioner as many as 5(five) witnesses have been examined who deposed that pursuant to an oral agreement the father of the petitioners paid Taka 21,000/- (twenty one thousand) and the possession was handed over. However, after careful perusal of the statement made by the PWs, I found some inconsistencies in the statements. For example PW1 Mostifuzur Rahman deposed that taka was given in front of PW5

Hafiz but PW5 himself deposed that he was not present when the second installment money was given.

Moreover, the plaintiff petitioners claim is that they have a close relationship with the defendants thus no Bainā in writing was not undertaken and the money was paid in two/three installments. In the year of 1992 a transaction of this manner regarding transfer of a land is not believable because in usual cases the transferee wants to keep a documentary evidence either by way of Bainā or by way of receipts of payment as the consideration money of any land but in the instant case the father of the plaintiff petitioners created an unbelievable factual aspects which required the plaintiffs to make out their own case with sufficient witness statements to support their case but the plaintiff petitioners failed to do so which could not substantiate any oral contract.

In a case of specific performance of contract the party who is claiming any performance of any contract must prove first that there was a contract after complying all the required formalities under the Contract Act, 1872. In this case, the plaintiff failed to prove any contract therefore question of performance by the present opposite party for executing a registered sale deed does not arise.

Regarding the possession of the suit land the admitted position between the parties is that the present plaintiff petitioners are in possession by way of Adhīrār (Borgā) since 1395 B.S. which is a long

period of time. The settled principle in this regard is that a tenant or Borgadar cannot claim ownership during continuation of the tenancy. In the instant case the defendant opposite party claimed that the father of the present petitioners use to cultivate crops and the proportionate amount of crops use to be given to the land lord who is the present opposite party No. 1 therefore, even if the possession in favour of the present opposite party has every right to dispossess them pursuant to this judgment and order.

Regarding the manner of payment there is no paper or document or any receipt thereof which is an important element for a contract because every contract must have a consideration but in the instant case depositions of the PWs could not consistently prove payment of the amount in installments as the consideration for selling the suit land.

Finally the father of the present petitioners was fully aware that suit land was purchased by a document exhibit-“Ka” dated 28.09.1971 but he did not take any attempt to take custody of the said document even after purported payment of the entire consideration money for any intention to sale the land to the father of the petitioners which is not a believable story as such the claim of the petitioners does not have any legal basis for claiming Specific Performance of Contract.

I am now inclined to consider the conflicting findings of the Court's below. The learned trial court came to a wrongful conclusion to

the decree the suit on the basis of handing over of possession which cannot be a basis of a decree because the admitted possession is that suit land is in the possession of the present petitioners by way of Borgadar. I therefore, consider that the learned trial court came to a wrongful conclusion to decree the suit on the basis of the following findings:

“উপর্যুক্ত আলোচনা সাক্ষ্যাদি বিশ্লেষণ ও বাস্তব অবস্থা দৃষ্টে অত্রাদালতের নিকট প্রতীয়মান হয় যে, নালিশী জমি বিক্রী এবং সেমতে দখল হস্তান্তর হবার ঘটনা বাদীপক্ষ প্রমাণ সক্ষম হয়-ছেন ম-র্ম অত্রাদালতের নিকট প্রতীয়মান হয়েছে। সেমতে ২/৩ নং বিচার্য বিষয় সমূহ বাদীপক্ষের অনুকূলে নিষ্পত্তি করা গেল।

বিচার্য বিষয় নং-৪/৫ঃ

উপর্যুক্ত আ-লাচনা ও বিচার্য বিষয় সমূহর ফলাফল দৃষ্ট দেখা যায় বাদীপক্ষ আরজির বক্তব্য প্রমাণে সক্ষম হয়েছেন। সুতরাং বাদীপক্ষ প্রার্থীত প্রতিকার লাভ কর-বন। সেমতে অত্র বিচার্য বিষয় সমূহ নিষ্পত্তি করা গেল।”

On the other hand, the learned appellate court below rightly considered that the oral agreement for selling the suit land could not be substantiated by any document or by the PWs, therefore, the learned appellate court below came to a lawful conclusion to allow the appeal by setting aside the judgment and decree passed by the learned trial court on the basis of the following findings:

“উপরোক্ত সাক্ষীদের সাক্ষ্য পর্যালোচনায় দেখা যায় যে, মূল্যের টাকা পরি-শোধ সম্পর্কিত বাদীপক্ষর ১ নং সাক্ষীর সাক্ষ্য পি, ডাব্লিউ-৩ আবুল হা-সম ও পি, ডাব্লিউ-৫ হাফিজ উদ্দিনের সাক্ষ্য দ্বারা সমর্থিত হয় নাই। বি-শেষ করিয়া বাদী পক্ষর ১ নং সাক্ষী মোস্তাফিজুর রহমান জেরা-ত বলিয়া-ছেন যে, তাহার বাবা হাফি-জর নিকট টাকা দেয়। হাফিজ (পি,

ডব্লিউ-৫) তাহার চাচার (১ নং বিবাদীর) নিকট টাকা দেন কিন্তু পি, ডাব্লিউ-৫ হাফিজ উদ্দিন জেরাতে বলেন যে, টাকা পরি-শা-ধর সময় তিনি উপস্থিত ছিলেন না। অধিকন্তু নালিশী ভূমি সংক্রান্ত ১ নং বিবাদীর গত ২৮/৯/৭১ তারিখের খরিদা মূল দলিল (প্রদঃ ক) ১ নং বিবাদীর হেফাজত হই-ত আদাল-ত দাখিল করা হইয়া-ছ। এবং ১ নং বিবাদীর পক্ষ প্রদঃ ক হিসা-ব চিহ্নিত করা হইয়া-ছ। যদি বাদী পক্ষ ১ নং বিবাদী হই-ত নালিশী জমি খরিদ করি-তন তাহা হই-ল ১ নং বিবাদীর ২৮/৯/৭১ তারিখের খরিদা মূল দলিল (প্রদঃ ক) বাদীপক্ষের হিফাজত হই-ত আদাল-ত দাখিল করা হইত।”

After examining the above two judgments and decrees passed by the learned court below and on the basis of the discussion made above, I am of the view that the learned trial court committed an error of law by decreeing the suit. However, the learned appellate court below came to a lawful conclusion to allow the appeal and also setting aside the judgment and decree passed by the learned trial court. I am therefore not inclined to interfere into the impugned judgment and decree.

Accordingly, I do not find merit in the Rule.

In the result, the Rule is discharged.

As per the above decision, the present plaintiff petitioners namely, Md. Shahid Mia and others, are hereby directed to hand over possession to the present opposite parties within 3(three) months from the date of receipt of this judgment.

The Section is directed to communicate this judgment and order to the court concern and the Section is also directed to send down the lower courts records immediately.